

2013 WL 5411490 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Kathleen ALMONTE and Mikey Lugo, Plaintiff,

v.

CITY OF NEW YORK, New York City Police Department, Police Officer **David Sammarco**, Police Officer John Doe and Police Officer John Roe, Defendant(s).

No. 0023447-2013.
September 18, 2013.

Summons

Neil Wollerstein, Esq., Attorney for Plaintiff, 59 Maiden Lane, 17th Floor, New York, NY 10038, (212) 412-4705, File No.: NW-513.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of the summons, exclusive of the day of service or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within Verified Complaint.

Date: New York, New York September 18, 2013

VERIFIED COMPLAINT

Plaintiffs, by their attorney, **NEIL WOLLERSTEIN, ESQ.**, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

1. That at all times the Plaintiff **KATHLEEN ALMONTE** was and is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, hereinafter referred to as "CITY", was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT, hereinafter referred to as "NYPD", was and is an agency of the defendant, CITY.
4. That on and prior to 7/31/12 and at all times hereinafter mentioned the defendant, POLICE OFFICER GREGORY SAMMARCO (Shield No. 210767), hereinafter referred to as "SAMMARCO" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.
5. That on and prior to 7/31/12 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN DOE, hereinafter referred to as "DOE" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

6. That on and prior to 7/31/12 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN ROE, hereinafter referred to as “ROE” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

7. Upon information and belief, at all times hereinafter mentioned, and on 7/31/12, at approximately 4:00 p.m., several police officers including but not limited to SAMMARCO, DOE and ROE were on duty and in the vicinity of East 237th Street and Barnes Avenue, County of Bronx, City and State of New York.

8. Upon information and belief, at all times hereinafter mentioned, and on 7/31/12, at approximately 4:00 p.m., the above mentioned Police Officers were acting within the scope of their employment and under the direction of the CITY and NYPD as its agents, servants and/or employees.

9. Upon information and belief, defendants SAMMARCO, DOE and ROE were all assigned to the 47th Precinct.

10. That on and prior to 7/31/12 SAMMARCO, DOE and ROE were each individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

11. That on and prior to 7/31/12, at approximately 4:00 p.m., and all relevant times herein after, SAMMARCO, DOE and ROE individually and/or collectively were acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

12. That on 7/31/12, at approximately, 4:00 p.m., Plaintiff **KATHLEEN ALMONTE** was lawfully in the vicinity of East 237th Street and Barnes Avenue, County of Bronx, State of New York and doing nothing illegal, improper or acting suspicious in anyway. In point of fact, Plaintiff **KATHLEEN ALMONTE** was not in possession of any contraband and was entirely unaware of any contraband on the premises if there were indeed any at all.

13. That on 7/31/12, at approximately, 4:00 p.m., in the vicinity of East 237th Street and Barnes Avenue, County of Bronx, State of New York, SAMMARCO, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **KATHLEEN ALMONTE** for no reason and summarily stopped, frisked, searched, grabbed, assaulted, battered, and detained her in an aggressive and excessive manner.

14. Upon information and belief SAMMARCO, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **KATHLEEN ALMONTE**.

15. Upon information and belief, Plaintiff **KATHLEEN ALMONTE** was subjected to a strip search while in the custody of defendants without any legal reason or justification.

16. That Plaintiff **KATHLEEN ALMONTE** was arraigned after her arrest and thereafter falsely and maliciously prosecuted with committing the crime of Criminal Possession of a Controlled Substance in the Fifth Degree and other related offenses.

17. Thereafter, Plaintiff **KATHLEEN ALMONTE** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against her were summarily dismissed by the District Attorney's Office on 6/14/13.

18. Plaintiff **KATHLEEN ALMONTE** sustained physical and emotional pain and injuries as a result of this incident.

19. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **KATHLEEN ALMONTE** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

20. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

21. That the defendants requested an oral examination pursuant to [General Municipal Law Section 50-H](#) and said request was complied with.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF KATHLEEN ALMONTE

22. Plaintiff KATHLEEN ALMONTE repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-21 with the same force and effect as if fully set forth at length herein.

23. That on or about 7/31/12, at approximately 4:00 p.m., the Plaintiff KATHLEEN ALMONTE was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, SAMMARCO, DOE and ROE, their agents, servants and/or employees, and in particular, by SAMMARCO, DOE and ROE.

24. That on or about 7/31/12, at approximately 4:00 p.m., the Plaintiff KATHLEEN ALMONTE while lawfully in the vicinity of East 237th Street and Barnes Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, SAMMARCO, DOE and ROE of having committed the crime of Criminal Possession of a Controlled Substance in the Fifth Degree.

25. That on or about 7/31/12, and upon arresting the Plaintiff **KATHLEEN ALMONTE** and depriving her of her liberty, CITY, NYPD, SAMMARCO, DOE and ROE took the Plaintiff **KATHLEEN ALMONTE** to a police station in the County of Bronx and entered her on the records as under arrest.

26. That on or about 7/31/12, the CITY, NYPD, SAMMARCO, DOE and ROE further caused Plaintiff **KATHLEEN ALMONTE** to have her fingerprints and photographs to be taken without her consent and in accordance with police procedures for the arrest of criminals and held her on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

27. That on or about 7/31/12 Plaintiff **KATHLEEN ALMONTE** was aware of her arrest and confinement, she did not consent to her arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

28. That at all times hereinafter mentioned the actions of CITY, NYPD, SAMMARCO, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

29. That by reason of the foregoing, Plaintiff KATHLEEN ALMONTE has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF KATHLEEN ALMONTE

30. Plaintiff **KATHLEEN ALMONTE** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-29 with the same force and effect as if fully set forth at length herein.

31. That on or about 7/31/12, a criminal complaint was issued by the CITY, NYPD, SAMMARCO, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

32. That on or about 7/31/12 a criminal action against Plaintiff KATHLEEN ALMONTE was commenced by CITY, NYPD, SAMMARCO, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

33. That solely as a result of the aforesaid, the Plaintiff **KATHLEEN ALMONTE'S** life was interfered with.

34. That the criminal action against Plaintiff **KATHLEEN ALMONTE** was continued for an extended period of time by defendants with malice and bad faith.

35. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff KATHLEEN ALMONTE, she was deprived of her liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

36. That on or about 6/14/13 the criminal action against Plaintiff KATHLEEN ALMONTE was terminated favorably by dismissal.

37. That the actions of CITY, NYPD, SAMMARCO, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

38. That by reason of the foregoing, Plaintiff **KATHLEEN ALMONTE** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF PLAINTIFF KATHLEEN ALMONTE

39. Plaintiff **KATHLEEN ALMONTE** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-38 with the same force and effect as if fully set forth at length herein.

40. That on or about 7/31/12, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **KATHLEEN ALMONTE** was intentionally touched, pushed, assaulted, battered, violated, strip searched, humiliated, photographed and handcuffed by the CITY, NYPD, SAMMARCO, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

41. That on or about 7/31/12 CITY, NYPD, SAMMARCO, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, SAMMARCO, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **KATHLEEN ALMONTE** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **KATHLEEN ALMONTE** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **KATHLEEN ALMONTE** and caused such battery in and about her head, neck, back, body and limbs.

42. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **KATHLEEN ALMONTE** suffered great and permanent bodily injury in and about her head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that she was otherwise damaged.

43. That as a result of the aforesaid assault and battery the Plaintiff **KATHLEEN ALMONTE** was caused to sustain serious, severe, painful and permanent bodily injuries so that she was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure herself of her said injuries and she was and will be prevented from attending her usual occupation and duties.

44. That at all times hereinafter mentioned the actions of CITY, NYPD, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

45. That by reason of the foregoing, Plaintiff **KATHLEEN ALMONTE** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF KATHLEEN ALMONTE

46. Plaintiff **KATHLEEN ALMONTE** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 -45 with the same force and effect as if fully set forth at length herein.

47. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to SAMMARCO, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

48. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

49. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

50. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

51. That by reason of the above, the Plaintiff **KATHLEEN ALMONTE** was injured in mind and body as she was arrested, prosecuted and rendered sick, sore, and damaged.

52. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

53. That by reason of the foregoing, Plaintiff **KATHLEEN ALMONTE** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF KATHLEEN ALMONTE

54. Plaintiff **KATHLEEN ALMONTE** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-53 with the same force and effect as if fully set forth at length herein.

55. In arresting Plaintiff **KATHLEEN ALMONTE**, police officers including but not limited to SAMMARCO, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

56. In arresting Plaintiff **KATHLEEN ALMONTE**, police officers including but not limited to SAMMARCO, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **KATHLEEN ALMONTE** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

57. As a result of the abuse of process by defendants herein, Plaintiff **KATHLEEN ALMONTE** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

58. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

59. That by reason of the foregoing, Plaintiff **KATHLEEN ALMONTE** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF KATHLEEN ALMONTE

60. Plaintiff **KATHLEEN ALMONTE** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 59 with the same force and effect as if fully set forth at length herein.

61. That on 7/31/12, at approximately 4:00 p.m., within the vicinity of East 237th Street and Barnes Avenue, County of Bronx, City and State of New York, the CITY and NYPD were present through its agents, servants and/or employees including but not limited to SAMMARCO, DOE and ROE who were acting in the course of their employment and under the color of law to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

62. That Plaintiff **KATHLEEN ALMONTE** was lawfully in the above vicinity at the above time when she was stopped, questioned, searched and seized solely on the basis of her age and/or race and for no legal or legitimate reason.

63. That said illegal stop and seizure was part of the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD under their "Stop, Question and Frisk" policy or program ("Stop and Frisk").

64. That under the "Stop and Frisk" program the CITY and NYPD permitted, condoned, or acted with deliberate indifference to the racial disparity of its' application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for Stop and Frisk", that officers do not always fill out Stop and Frisk reports, i.e. UF-250s, and are not disciplined

when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of “Stop and Frisk” has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.

65. That the CITY and NYPD have failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and has failed to discipline police officers who fail to fill out required UF-250s.

66. That the CITY and NYPD have failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent citizens who have not done anything illegal or acted in suspicious manner warranting a seizure, who failed to report misconduct of fellow officers, who destroy evidence, who engage in fraud, misrepresentations, deceit, who knowingly arrest individuals whose mere presence in a location is the only nexus to any type of contraband when same is not in plain view and the individual has no knowledge of its presence and maliciously participate in and instigate prosecutions of innocent citizens.

67. It is alleged herein that Plaintiff **KATHLEEN ALMONTE** was stopped and seized absent reasonable suspicion. That said actions of defendants were pursuant to an illegal and improper Stop and Frisk program that was promulgated by defendants. That such custom, policy and program has created a class of citizens, including Plaintiff **KATHLEEN ALMONTE**, who have been illegally stopped and seized, searched and questioned based on their race, and in order to meet arrest quotas. Evidence of said policy is as follows:

a. That in a class action lawsuit *David Floyd, et. al. v. City of New York, et. al.*, pending in United States District Court, Southern District of New York, 08 CIV 1034, in a decision dated 5/16/12 certifying a class action lawsuit, it was found that between the years of 2005 and 2009 a reported 2.8 million people in New York City have been stopped and frisked. Of said number more than 87% were minority citizens. Summons and arrests were issued or made in approximately 10 of the reported stops. Meaning that based on their own records, defendants' suspicions are incorrect approximately 9 out of 10 stops.

b. The Honorable Shira A. Scheindlin, found in the *Floyd* decision that:

i. It is indisputable that NYPD has an enormous Stop and Frisk program;

ii. Evidence shows that the Stop and Frisk program is organized and hierarchical;

iii. Stop and Frisk program has been designed and revised at highest levels of defendants;

iv. The implementation of the program is conducted according to uniform and centralized rules;

v. or the program is merarchicar

vi. The program is the result of institutional decisions and directives.

c. Justice Sheindlin further found that a preponderance of evidence shows that defendants policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The Court noted that street level stops have risen every year. That in 2004, defendants documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated 10/17/11, Commissioner Kelly directed that “Department managers can and must set performance goals - relating to “the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals.” It further states that “uniformed members who do not demonstrate activities... or who fail to engage in proactive activities... will be evaluated accordingly and their assignments reassessed.”

68. Other instances of an illegal and/or improper stop and frisk program custom or practice and/or excessive use of force and filing of false charges includes but not limited to:

a. On 4/12/11 in the vicinity of Walton Avenue and Mt. Hope Place, Bronx, NY, while doing nothing illegal or improper, Lonnie Thompson was approached by several uniformed police officers for no reason and without reasonable suspicion. After being stopped, Mr. Thompson was patted down and searched. He was arrested and charged with Criminal Possession of a Weapon in the Fourth Degree. This, even though the weapon was a bona fide work tool. Mr. Thompson was subjected to a strip search at the 46th Precinct. All charges were dismissed.

b. On 5/4/11 in the vicinity of 2345 Jerome Avenue, Bronx, NY, Alex Niewkerk, who is handicapped, was sitting in his legally parked vehicle and waiting for his friends to finish shopping at a nearby store. All of a sudden several undercover police officers from Bronx Narcotics approached his vehicle for no reason and without reasonable suspicion ordered him out of said vehicle. Mr. Niewkerk was subjected to a pat down and search. He was subsequently arrested for possession of a controlled substance in the seventh degree even though the “substance” recovered from his pants pocket was his own prescribed pain medication. Mr. Niewkerk was subjected to a strip search and forced to move his body in ways that are extremely painful given his medical status and condition. All charges were dismissed.

c. On 6/2/11 in the vicinity of 100 Simpson Street, Bronx, NY, Jesus Rosario, an infant, was approached by several police officers from the 41st Precinct. He was told to “get on the wall” and thereafter patted down and searched. Mr. Rosario was accused of Trespassing in the Second Degree. Mr. Rosario was doing nothing illegal or improper at the time the officers approached as he was simply exiting 1000 Simpson Street after visiting his father who resides in said building. After being arrested, Mr. Rosario was subjected to a strip search at the 41st Precinct. The case was declined to be prosecuted by the District Attorney's Office.

d. On 7/31/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Nicholas Hernandez and Dilson Pena were sitting outside of their building on a public bench and doing nothing illegal or improper. All of a sudden, several police officers from the 41st Precinct approached them for no reason and told them to submit to a frisk. Mr. Hernandez and Mr. Pena were accused of possession of marihuana even though no marihuana was recovered. They were each subjected to a strip search at the 41st Precinct. All charges against them were declined to be prosecuted by the District Attorney's Office.

e. On 1/22/11 in the vicinity of 808 Park Avenue, Brooklyn, NY, Captain Michelle Culp, a now retired Captain for New York City Department of Corrections, was visiting her sick and elderly mother at the aforementioned address and decided to walk her mother's dog. In so doing, Captain Culp was approached by several uniform housing police officers and accused of Trespassing in the Second Degree. She was patted down and searched. This, despite the fact that Captain Culp explained that she was visiting her mother and her identification and personal belongings were in her mother's apartment in the same building. All charges were dismissed.

f. On 5/20/11 in the vicinity of Park Avenue and East 138th Street, Bronx, NY, Patrick Nielson was exiting the number 4 subway train and going to his car which was parked nearby when he was followed, stopped, frisked, and assaulted by several undercover police officers from Bronx Narcotics for no reason. Thereafter, he was arrested and accused of possession of a controlled substance. Mr. Nielson was subjected to a strip search. The “controlled” substance was Mr. Nielson's prescription medication. All charges were dismissed.

g. On 6/22/10 in the vicinity of 139th Street and Lenox Avenue, New York, NY, Wilford Person was approached by several undercover police officers from Manhattan North Narcotics for no legitimate reason. Mr. Person was thereafter told to get against a fence and patted down and searched. He was accused of possession of marihuana. Mr. Person was simply playing basketball at the time the police approached him. After being arrested Mr. Person was subjected to a strip search. All charges were eventually dismissed.

h. On 5/2/12 in the vicinity of 1912 Third Avenue, New York, NY, Jose Baez, the manager of a local eyeglass store, left the store to buy his lunch. After leaving the store Mr. Baez, for no reason at all, was approached by several undercover police

officers from Manhattan North Narcotics, and was detained, patted down, searched, and falsely accused of selling marihuana. Mr. Baez was subjected to a strip search. All charges against him were dismissed.

i. On 11/13/10 in the vicinity of 1113 Boston Road, Bronx, NY, Alpha Mahoi, was doing nothing illegal or improper when, for no reason, he was approached by several undercover police officers from Bronx Narcotics and accused of being involved in the sale of cocaine. He was cuffed, patted down, searched, arrested and strip searched at the precinct. All charges were dismissed.

j. On 3/10/12 in the vicinity of 1821 Davison Avenue, Bronx, NY, Keyewanie Blackledge, Dwayne Sammarco and Richard Campbell were leaving their friend's apartment when they were approached by several uniform police officers from the 46th Precinct for no reason and told to "get on the wall" and "get on the floor" and thereafter patted down and searched. They were all charged with Trespassing in the Second Degree. All charges were dismissed.

k. On 7/31/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Dylan Pena was outside recording on his cell phone several police officers from the 41st Precinct arresting a person from the neighborhood. Upon seeing Mr. Pena recording the incident several police officers grabbed him and pushed him to the ground and seized his cell phone without any reason to do so. All data on the phone was subsequently erased by the officers. Mr. Pena was also patted down and searched. He was charged with resisting arrest and was strip searched at the 41st Precinct. The charges were declined to be prosecuted by the District Attorney's Office.

l. On 5/17/11 in the vicinity of 1690 Clay Avenue, Bronx, NY, Gregory Williams was leaving a family friend's apartment after helping her move furniture so she could clean. Upon exiting the building Mr. Williams, for no reason at all, was approached by several uniformed police officers from the 44th Precinct and patted down and searched. He was accused of Trespassing in the Second Degree despite his family friend informing the police officers at the scene and at the 44th Precinct that he had permission to be in the building. Mr. Williams was strip searched. All charges against him were dismissed.

m. On 3/16/11 in the vicinity of 1740 Grand Avenue, Bronx, NY, Lindon Grant just left his apartment to walk approximately 1 block to buy breakfast before going to work. After he bought his breakfast and left the store he was approached by several undercover police officers from the 46th Precinct for no reason and patted down and searched. He was then accused of selling marihuana. Mr. Grant was arrested, strip searched and prosecuted for several months. All charges were dismissed.

n. On 8/2/09 in the vicinity of Southern Boulevard and East 175th Street, Bronx, NY Jose Suazo was approached by several uniformed officers from the 42nd Precinct for no reason. Mr. Suazo was patted down and searched. Despite the fact that he had nothing illegal on his person he was charged with possession of marihuana. While already in custody in a police van shots were fired in a nearby park. When Mr. Suazo got to the precinct he found out that even though he was already in custody in the police van when the shots were fired, he was charged with possession of a weapon in the second degree. Mr. Suazo was subjected to a strip search. All charges were eventually dismissed.

o. On 8/12/09 in the vicinity of 894 Rogers Place, Bronx, NY, Edmanuel Benitez was standing outside of the building and waiting for a friend to come outside to play basketball. All of a sudden he was approached for no reason by officers from the 41st Precinct and thereafter patted down, searched, arrested, strip searched and prosecuted for the sale of marihuana. All charges were dismissed.

p. On 2/19/12 Daniel Rodriguez was leaving a store in the vicinity of Jerome Avenue and West 192nd Street when he was summarily grabbed, pushed against a wall, patted down, frisked, searched and then handcuffed by several officers from Bronx Narcotics. Mr. Rodriguez was doing nothing illegal or improper at the time. He was subsequently strip searched and charged with possession of a controlled substance in the seventh degree. All charges were dismissed.

q. On 9/28/11 Shakeem Enang was in the vicinity of West 179th Street and University Avenue when he was approached by several plain clothes officers from Bronx Narcotics Division. Mr. Enang was doing nothing illegal at the time the officers approached or anytime prior to the officers approaching. He was grabbed, seized, frisked, searched and then arrested. Mr. Enang was charged with criminal sale of a controlled substance. He was strip searched at the 46th Precinct. All charges were dismissed.

r. On 4/29/11 Jose Gonzalez was in the vicinity of Prospect Avenue and East 175th Street, Bronx, New York, at approximately 11:30 p.m., when he was approached by several plain clothes police officers from Bronx Narcotics. At the time the officers approached Mr. Gonzalez, and at anytime before they approached, Mr. Gonzalez was not doing anything illegal. He was simply going to the store to buy soda and a pack of cigarettes. Mr. Gonzalez was grabbed, seized, frisked, searched and then arrested by said officers. Mr. Gonzalez was charged with criminal sale of a controlled substance in the third degree. He was strip searched while in custody. All charges were dismissed.

s. On 3/16/13, at approximately 9:30 p.m., Timothy Brooks, an infant, and his brother Jonathan Gordon, had just left their grandmother's apartment at 2000 Valentine Avenue, Bronx, NY to go to the store to buy milk. Mr. Brooks and Mr. Gordon did not even have the opportunity to exit the building when they were approached by several officers from the 46th Precinct for no reason at all, and subjected to a pat down and search. Even though Mr. Brooks and Mr. Gordon were doing nothing illegal at the time and had full permission and authority to be in the building, they were arrested and charged with Trespassing in the Second Degree. At the 46th Precinct they were subjected to a strip search. Eventually all charges against them were dismissed.

t. On 7/4/11, at approximately 11:20 p.m., Christina Vilella was in the vicinity of 894 Rogers Place and doing nothing illegal, improper or suspicious. Several police officers from the 41st Precinct approached Ms. Vilella and thereafter grabbed her, searched her, and summarily handcuffed her without any legal reason or justification. Ms. Vilella was charged with Resisting Arrest. All charges against her were dismissed on 6/29/12.

68. In addition to the above, and as will be demonstrated below, the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD also extends to other areas that implicitly or explicitly form a policy or a program that is carried out and implemented in an egregious, malicious, deliberate, indifferent and unconstitutional fashion.

69. The CITY and NYPD on a consistent and constant basis, with or without a valid search warrant, with or without lawful entry onto private real property or a premises such as an apartment, unlawfully detain, harass, seize, search, destroy and illegally remove personal property and thereafter arrest individuals within such a premises who are neither leaseholders nor owners of said premises and who are only present in a room on said real property where contraband is not in plain view.

70. The above must be considered, as the facts herein suggest, when an individual is in a room on a premises where contraband is not in plain view, it cannot be said, as a matter of law, that said individual is to be in actual or constructive possession of contraband nor in possession pursuant to a Penal Law statutory presumption. Nonetheless, defendants on a consistent and constant basis unlawfully stop, seize, search and arrest individuals, such as the Plaintiff herein, in such a scenario even though the stop, seizure and arrest of said individual, including Plaintiff herein, is lacking in reasonable cause, probable cause or legal justification.

71. The foregoing acts, omissions and systemic failures are customs and policies of the CITY and NYPD which caused the police officers herein to falsely arrest, maliciously prosecute, illegally seize and search the Plaintiff unlawfully, commit an assault and battery to Plaintiff's person under the belief that said police officers would not suffer any disciplinary actions for their improper and unconstitutional conduct.

72. The CITY and NYPD'S failure to train its police officers to distinguish between individuals who are lessee's and/or reside at a premises for a sufficient length of time as evidence by utility bills in their name, letters or mail addressed to them at the

premises, as opposed to individuals who are mere guests or visitors who do not have the right to exercise dominion and control over the premises as evidenced by their not having any furniture in the premises, their name on the lease, their name on a utility bill or mail addressed to them as well as having no personal belongings within the premises that demonstrate something more than a temporary or overnight guest, are all factors that the CITY and NYPD have consistently and constantly ignored in a deliberate and malicious fashion.

73. As the same fact patterns are present over the past several years with alarming frequency, it is apparent and obvious that a pattern by the CITY and NYPD has developed and is in place demonstrating continued violations of individuals similarly situated to the Plaintiff herein. The pattern demonstrates either a defacto policy or custom that exists to allow this behavior by failing to discipline its officers or that this is a custom of its police officers who have no and/or insufficient training and/or no proper supervision and/or disciplinary penalties assessed against them for continued acting in an unconstitutional manner.

74. The below examples demonstrate a small sample of the pattern practice and custom of deliberate indifference by the CITY and NYPD by arresting innocent individuals who are merely present in a location when contraband is not in plain view and have no legal ties to the premises being searched either with or without a search warrant, either legally or illegally.

a. On 10/22/10, Joanne Brown, Andrea Doby and Tameka Gunter were inside apartment 4E at 1684 Nelson Avenue, Bronx, NY. They were doing nothing illegal or improper and were simply visiting a friend. None of the aforementioned individuals were leaseholders or had any legal connections to the premises. All 3 individuals were only in the apartment for a short while when all of a sudden several police officers entered the apartment and arrested all of the occupants. Despite several requests the officers never presented a search warrant. All 3 of the above-mentioned individuals were charged with possession of a controlled substance in the seventh degree despite the fact that none of them ever were aware of or had any knowledge of any contraband in the apartment and contraband was not in plain view at anytime. All charges were eventually dismissed.

b. On 2/8/08, Tony Mizell was inside apartment 2 at 950 Saint John Avenue, Bronx, NY. Mr. Mizell was not a leaseholder of said premises and had no legal connection to the apartment. He was simply an overnight guest with his wife and small child. All of a sudden, in the early morning hours, several police officers rushed into the apartment and arrested all of the occupants for possession of a weapon. A search warrant was never presented. The weapon was located in a back bedroom inside a closet within a coat pocket. Mr. Mizell had no connection to the gun, the bedroom or the closet. He was arrested and prosecuted for several months even though the owner of the gun pled guilty in Federal Court shortly after 2/8/08. Eventually all charges were dismissed against Mr. Mizell.

c. On 1/10/10 Gregory Jacobus was inside apartment 4 located at 2290 Davidson Avenue, Bronx, New York. Mr. Jacobus was visiting his chess teacher. He was simply an overnight guest in apartment 4 and was not a leaseholder and had no legal rights to the apartment. Early in the morning while Mr. Jacobus was in the shower, several police officers rushed into the apartment and arrested Mr. Jacobus and his chess teacher. A search warrant was never presented. Mr. Jacobus never saw any contraband in the apartment at anytime and had no knowledge of any contraband if there was indeed any. After spending several days in jail, a Grand Jury dismissed all charges against Mr. Jacobus.

d. On 6/12/07 Joanne Reyes was inside apartment 1F at 1530 Sheridan Ave, Bronx, NY. In the early morning hours Ms. Reyes heard a loud bang and several people rushed into her apartment. Ms. Reyes thought she was getting robbed until she realized the individuals were police officers. Even though Ms. Reyes was not a leaseholder to the apartment and no contraband was in plain view at anytime and Ms. Reyes never saw any contraband within the apartment at anytime, she was handcuffed, arrested and taken to a local precinct and then central booking. Her pleas for her medications were summarily ignored throughout the entire time she was detained. After being prosecuted for several months the case was eventually dismissed.

e. On 4/4/08 Shakenia Garlick was inside apartment 7B at 2487 Grand Avenue, Bronx, NY. In the early morning hours several police officers broke down the front door and entered her apartment. No search warrant was ever presented. Ms. Garlick had no knowledge of any contraband in the apartment and same was never in plain view. Despite aggressive questioning by the officers

Ms. Garlic insisted that they were making a mistake and were, perhaps, in the wrong apartment. She was arrested for possession of a controlled substance. The substance was her pre-natal vitamins. The case was dismissed by the District Attorney's Office when the laboratory analysis indicated negative for a controlled substance.

f. On 8/5/09 Edward Benitez was inside apartment 5E visiting his friend at 894 Rogers Place. It was the early afternoon and Mr. Benitez was inside the apartment for only a few minutes. All of a sudden there was a knock at the door and several police officers rushed into the apartment. Despite the fact that Mr. Benitez was not a resident of the apartment, not a leaseholder and had no legal connection to the apartment he was arrested for possession of marihuana which was neither on his person or in plain view in any part of the apartment. After several court appearances all charges were dismissed against him

g. On 1/18/12 Jennifer Tarantino was inside apartment E1N at 3034 Grand Concourse, Bronx, NY. She was visiting her boyfriend who was renting out the spare bedroom to another individual. Around 10:00 p.m. Ms. Tarantino was awoken by a loud noise and several police officers were pointing their guns at her as she lie in bed. Even though Ms. Tarantino was not a leaseholder of the apartment and had no legal rights to the apartment she, as an overnight guest, was arrested and charged with possession of a controlled substance in the third degree. She was never presented with a search warrant despite numerous requests and never saw anything illegal in plain view. All charges against her were eventually dismissed.

h. On 11/18/11 Sabrina Souffront was in apartment 4A located at 1465 Washington Ave, Bronx, NY. Ms. Souffront was visiting a friend and was not a leaseholder of the apartment and had no legal rights to said apartment. No contraband was ever in plain view and she had no knowledge of any contraband within the apartment. In the early morning hours, Ms. Souffront heard a loud bang at the front door and several police officers rushed into the apartment and detained all of the occupants. Ms. Souffront later learned that in one of the bedrooms, within a closet, was a small amount of narcotics. Ms. Souffront was completely unaware of the existence of anything illegal in the apartment and in fact was never even in that particular bedroom during her visit. She was arrested and held in jail for over 24 hours. Eventually all charges against her were dismissed.

i. On 7/29/11 Ismael Velez and Michael Concepcion were inside the basement apartment at 512 East 162nd Street, Bronx, NY. The basement apartment was a music studio and Velez and Concepcion were recording. In the early morning hours, all of a sudden, several police officers rushed into the studio and assaulted Velez and Concepcion and arrested them for possession of marihuana. Velez and Concepcion were not leaseholders and had no legal ties to the basement apartment. In addition, Velez and Concepcion never saw any illegal substances in plain view at anytime they were in the recording studio. All charges were eventually dismissed.

j. On 6/17/10 Samantha Morales was inside apartment 5B located at 1000 Simpson Street, Bronx, NY. In the early morning hours, all of a sudden several police officers rushed into the apartment and arrested Ms. Morales and all of the occupants. Ms. Morales was not a leaseholder of the apartment. She was charged with possession of marihuana even though marihuana was never found and certainly not in plain view at anytime. Despite requests a search warrant was never presented. The District Attorney's Office declined to prosecute Ms. Morales.

k. On 6/16/10 Frankie Morales was inside apartment 4K at 995 Simpson Street, Bronx, NY. In the early morning hours he heard a bang on the door and several police officers rushed into the apartment. Mr. Morales is not a leaseholder of the apartment and has no legal rights to same. He was arrested and charged with possession of marihuana despite the fact that nothing of an illegal nature was ever found in the apartment. No search warrant was ever presented despite numerous requests. The District Attorney's Office declined to prosecute the case.

l. On 6/16/10 Christopher Hernandez was inside apartment 4H at 995 Simpson Street, Bronx, NY. In the early morning hours he heard a bang on the door and several police officers rushed into the apartment. Mr. Hernandez is not a leaseholder of the apartment and has no legal rights to same. He was arrested and charged with possession of marihuana despite the fact that nothing of an illegal nature was ever found in the apartment. No search warrant was ever presented despite numerous requests. The District Attorney's Office declined to prosecute the case.

m. On 2/1/12 Mikey Figueroa, Sr., Mikey Figueroa, Jr. and Laurita Figueroa were inside apartment 6A at 360 Morris Avenue, Bronx, NY. In the early morning hours they heard a bang on the door and several police officers rushed into the apartment. The police broke Mr. Figueroa, Sr.'s nose (he is approximately 74 years old). All were arrested and charged with possession of marihuana despite the fact that nothing of an illegal nature was ever found in the apartment and in point of fact no contraband was ever in the apartment. No search warrant was ever presented despite numerous requests. The District Attorney's Office declined to prosecute the case.

75. As is evidenced from the above, Plaintiff **KATHLEEN ALMONTE'S** injuries including the violation of her constitutional rights, the deprivation of her freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY'S and NYPD'S policies and/or deliberate indifference to practices which involve the excessive use of force, false arrest, police cover-ups, witness intimidation, malicious prosecution, illegal stop, questions and frisks, strip searches, Fourth Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment offending police officers. Moreover, it is the direct result of police officers arresting individuals for possession of contraband within a premises when either no such contraband exists or is not in plain view and the nexus between the contraband and the individual being arrested is so lacking that reasonable cause to effectuate the arrest is not present especially in light of the fact when the individual is only a temporary or overnight guest in the premises and is not the leaseholder. The practice is widespread and pervasive throughout the entire City of New York.

76. The CITY and NYPD knew or should have known of the customs and police practices of its officers which included but was not limited to: the failing to preserve and/or destruction of exculpatory evidence, threatening to arrest witnesses to police misconduct and engaging in cover-ups, fraud, perjury, deceit and malfeasance, arresting individuals when not in possession of a valid search warrant as well as police officers arresting individuals for possession of contraband within a premises when either no such contraband exists or is not in plain view and the nexus between the contraband and the individual being arrested is so lacking that reasonable cause to effectuate the arrest is not present especially in light of the fact when the individual is only a temporary or overnight guest in the premises and is not the leaseholder.

77. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go unreported, undisciplined and their acts condoned by other officers, including their supervisors. Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

78. The CITY and NYPD'S tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a systemic practice and policy wherein police officers seem fairly tolerant of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are not viewed as "good cops" but rather as outcasts and are ostracized and often transferred to other assignments thereby perpetuating the illegal conduct of the NYPD and thusly the CITY.

79. Some instances where officers were treated as outcasts for reporting misconduct and/or arrest/summons quota system are as follows:

- a. The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin in Floyd.
- b. Justice Sheindlin referenced the deposition of Police Officer Polanco of the 41St Precinct stating that commanding officers set specific quotas for arrests and summons and for stop and frisks and threatened to reduce overtime for officers who failed to perform well and re-assign those who fail to meet quotas to less desirable posts.

c. According to secretly tape recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector and Chief of Transportation can be heard encouraging and demanding increased stops, summons and detentions and arrests.

d. Police Officer Craig Kathleens of the 42nd Precinct filed a lawsuit against the NYPD claiming the existence of a quota system and a systematic retaliation and harassment to those who did not comply.

e. Retired Detective James Griffin filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption will face harassment and a hostile work environment and that this conduct was tolerated by supervisors within the NYPD.

f. Police Officer Anthony Minoia, an officer with an Ivy League degree, assigned to the 42nd Precinct, was reassigned to a "punishment post" due to the fact that he failed to write a sufficient amount of summons and stated "I'm not going to pull out my summons book and write a summons because my boss is telling me he's going to make it difficult for me if I don't."

80. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and searching innocent citizens or using unnecessary or excessive force or falsely arresting citizens to meet an arrest quota.

81. That the above customs, policies and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff **KATHLEEN ALMONTE**, the excessive use of force on Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The CITY and NYPD'S policies, customs and/or practices deprived the Plaintiff of his rights and liberties as set forth in the Constitutions of the United States and the State of New York and under 42 U.S. §§ 1983, 1986 and 1988.

82. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States, violated Plaintiffs right to be secure in person, and that the defendants used excessive, unnecessary and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.

83. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, excessive or arbitrary use of force, illegal use of police equipment, destruction of evidence, intimidation of witnesses, illegal arrests, failing to gather evidence when allegations of police misconduct are involved, condoning a code of silence within the NYPD regarding misconduct, failing to take police reports of illegal conduct, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiffs false arrest, malicious and false prosecution, and injuries.

84. That the Plaintiff did not commit any illegal act, either before or at the time she was falsely arrested and imprisoned, assaulted, battered and deprived of his constitutional rights as set forth in the Constitution of the United States and [42 U.S.C § 1983](#).

85. That by reason of the foregoing, Plaintiff **KATHLEEN ALMONTE** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF KATHLEEN ALMONTE

86. Plaintiff **KATHLEEN ALMONTE** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 85 with the same force and effect as if fully set forth at length herein.

87. At all times mentioned herein and above, defendants CITY and NYPD employed SAMMARCO, DOE and ROE as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

88. Plaintiff **KATHLEEN ALMONTE** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to [42 United States Code, Section 1983](#) and [42 United States Code, Section 1988](#).

89. That on or about 7/31/12, defendants CITY, NYPD, SAMMARCO, DOE and ROE without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **KATHLEEN ALMONTE**, did search, seize, assault and commit a battery and grab the Plaintiff **KATHLEEN ALMONTE** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **KATHLEEN ALMONTE** during the arrest process in an unlawful and excessive manner. Plaintiff **KATHLEEN ALMONTE** was falsely arrested, unlawfully imprisoned and strip searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

90. The above actions of defendants CITY, NYPD, SAMMARCO, DOE and ROE and ROE resulted in Plaintiff **KATHLEEN ALMONTE** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law.

91. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

92. Defendants CITY, NYPD, SAMMARCO, DOE and ROE subjected Plaintiff **KATHLEEN ALMONTE** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **KATHLEEN ALMONTE'S** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

93. The direct and proximate result of the defendants CITY, NYPD, SAMMARCO, DOE and ROE acts are that Plaintiff **KATHLEEN ALMONTE** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

94. That by reason of the foregoing, Plaintiff **KATHLEEN ALMONTE** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A EIGHTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF MIKEY LUGO

95. Plaintiff **MIKEY LUGO** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-94 with the same force and effect as if fully set forth at length herein.

96. That at all times the Plaintiff **MIKEY LUGO** was and is a resident of Bronx County, State of New York.

97. That on 7/31/12, at approximately, 4:00 p.m., Plaintiff **MIKEY LUGO** was lawfully in the vicinity of East 237th Street and Barnes Avenue, County of Bronx, State of New York and doing nothing illegal, improper or acting suspicious in anyway.

In point of fact, Plaintiff **MIKEY LUGO** was not in possession of any contraband and was entirely unaware of any contraband on the premises if there were indeed any at all.

98. That on 7/31/12, at approximately, 4:00 p.m., in the vicinity of 3044 Kingsbridge Avenue, County of Bronx, State of New York, SAMMARCO, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **MIKEY LUGO** for no reason and summarily stopped, frisked, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

99. Upon information and belief SAMMARCO, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **MIKEY LUGO**.

100. Upon information and belief, Plaintiff **MIKEY LUGO** was subjected to a strip search while in the custody of defendants without any legal reason or justification.

101. That Plaintiff **MIKEY LUGO** was arraigned after her arrest and thereafter falsely and maliciously prosecuted with committing the crime of Criminal Possession of Controlled Substance in the Fifth Degree and other related offenses.

102. Thereafter, Plaintiff **MIKEY LUGO** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against her were summarily dismissed by the District Attorney's Office on 6/14/13.

103. Plaintiff **MIKEY LUGO** sustained physical and emotional pain and injuries as a result of this incident.

104. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **MIKEY LUGO** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

105. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

106. That the defendants requested an oral examination pursuant to [General Municipal Law Section 50-H](#) and said request was complied with.

107. That on or about 7/31/12, at approximately 4:00 p.m., the Plaintiff **MIKEY LUGO** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, SAMMARCO, DOE and ROE, their agents, servants and/or employees, and in particular, by SAMMARCO, DOE and ROE.

108. That on or about 7/31/12, at approximately 4:00 p.m., the Plaintiff **MIKEY LUGO** while lawfully in the vicinity of East 237th Street and Barnes Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, SAMMARCO, DOE and ROE of having committed the crime of Criminal Possession of Controlled Substance in the Third Degree.

109. That on or about 7/31/12, and upon arresting the Plaintiff **MIKEY LUGO** and depriving him of his liberty, CITY, NYPD, SAMMARCO, DOE and ROE took the Plaintiff **MIKEY LUGO** to a police station in the County of Bronx and entered her on the records as under arrest.

110. That on or about 7/31/12, the CITY, NYPD, SAMMARCO, DOE and ROE further caused Plaintiff **MIKEY LUGO** to have her fingerprints and photographs to be taken without her consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

111. That on or about 7/31/12 Plaintiff **MIKEY LUGO** was aware of his arrest and confinement, he did not consent to her arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

112. That at all times hereinafter mentioned the actions of CITY, NYPD, SAMMARCO, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

113. That by reason of the foregoing, Plaintiff **MIKEY LUGO** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF MIKEY LUGO

114. Plaintiff **MIKEY LUGO** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-113 with the same force and effect as if fully set forth at length herein.

115. That on or about 7/31/12, a criminal complaint was issued by the CITY, NYPD, SAMMARCO, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

116. That on or about 7/31/12 a criminal action against Plaintiff **MIKEY LUGO** was commenced by CITY, NYPD, SAMMARCO, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

117. That solely as a result of the aforesaid, the Plaintiff **MIKEY LUGO'S** life was interfered with.

118. That the criminal action against Plaintiff **MIKEY LUGO** was continued for an extended period of time by defendants with malice and bad faith.

119. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **MIKEY LUGO**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

120. That on or about 6/14/13 the criminal action against Plaintiff **MIKEY LUGO** was terminated favorably by dismissal.

121. That the actions of CITY, NYPD, SAMMARCO, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

122. That by reason of the foregoing, Plaintiff **MIKEY LUGO** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF MIKEY LUGO

123. Plaintiff **MIKEY LUGO** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-122 with the same force and effect as if fully set forth at length herein.

124. That on or about 7/31/12, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **MIKEY LUGO** was intentionally touched, pushed, assaulted, battered, violated, strip searched, humiliated, photographed and handcuffed by the CITY, NYPD, SAMMARCO, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

125. That on or about 7/31/12 CITY, NYPD, SAMMARCO, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, SAMMARCO, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **MIKEY LUGO** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **MIKEY LUGO** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **MIKEY LUGO** and caused such battery in and about her head, neck, back, body and limbs.

126. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **MIKEY LUGO** suffered great and permanent bodily injury in and about her head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that she was otherwise damaged.

127. That as a result of the aforesaid assault and battery the Plaintiff **MIKEY LUGO** was caused to sustain serious, severe, painful and permanent bodily injuries so that she was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure herself of her said injuries and she was and will be prevented from attending her usual occupation and duties.

128. That at all times hereinafter mentioned the actions of CITY, NYPD, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

129. That by reason of the foregoing, Plaintiff **MIKEY LUGO** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A ELEVENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF MIKEY LUGO

130. Plaintiff **MIKEY LUGO** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-129 with the same force and effect as if fully set forth at length herein.

131. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to SAMMARCO, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

132. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

133. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

134. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

135. That by reason of the above, the Plaintiff **MIKEY LUGO** was injured in mind and body as she was arrested, prosecuted and rendered sick, sore, and damaged.

136. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

137. That by reason of the foregoing, Plaintiff **MIKEY LUGO** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A TWELFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF MIKEY LUGO

138. Plaintiff **MIKEY LUGO** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-138 with the same force and effect as if fully set forth at length herein.

139. In arresting Plaintiff **MIKEY LUGO**, police officers including but not limited to SAMMARCO, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

140. In arresting Plaintiff **MIKEY LUGO**, police officers including but not limited to SAMMARCO, DOE and ROE, acting in their capacity as agents, servants and employees of **CITY** and **NYPD**, sought either a detriment to Plaintiff **MIKEY LUGO** or a collateral advantage to the **CITY** and **NYPD** that is outside the legitimate ends of effectuating an arrest.

141. As a result of the abuse of process by defendants herein, Plaintiff **MIKEY LUGO** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

142. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

143. That by reason of the foregoing, Plaintiff **MIKEY LUGO** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRTEENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF MIKEY LUGO

144. Plaintiff MIKEY LUGO repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-143 with the same force and effect as if fully set forth at length herein.

145. That on 7/31/12, at approximately 4:00 p.m., within the vicinity of East 237th Street and Barnes Avenue, County of Bronx, City and State of New York, the CITY and NYPD were present through its agents, servants and/or employees including but not limited to SAMMARCO, DOE and ROE who were acting in the course of their employment and under the color of law to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

146. That Plaintiff MIKEY LUGO was lawfully in the above vicinity at the above time when she was stopped, questioned, searched and seized solely on the basis of her age and/or race and for no legal or legitimate reason.

147. That said illegal stop and seizure was part of the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD under their "Stop, Question and Frisk" policy or program ("Stop and Frisk").

148. That under the "Stop and Frisk" program the CITY and NYPD permitted, condoned, or acted with deliberate indifference to the racial disparity of its' application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for "Stop and Frisk", that officers do not always fill out Stop and Frisk reports, i.e. UF-250s, and are not disciplined when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of "Stop and Frisk" has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.

149. That the CITY and NYPD have failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and has failed to discipline police officers who fail to fill out required UF-250s.

150. That the CITY and NYPD have failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent citizens who have not done anything illegal or acted in suspicious manner warranting a seizure, who failed to report misconduct of fellow officers, who destroy evidence, who engage in fraud, misrepresentations, deceit, who knowingly arrest individuals whose mere presence in a location is the only nexus to any type of contraband when same is not in plain view and the individual has no knowledge of its presence and maliciously participate in and instigate prosecutions of innocent citizens.

151. It is alleged herein that Plaintiff **MIKEY LUGO** was stopped and seized absent reasonable suspicion. That said actions of defendants were pursuant to an illegal and improper Stop and Frisk program that was promulgated by defendants. That such custom, policy and program has created a class of citizens, including Plaintiff **MIKEY LUGO**, who have been illegally stopped and seized, searched and questioned based on their race, and in order to meet arrest quotas. Evidence of said policy is as follows:

a. That in a class action lawsuit *David Floyd, et. al. v. City of New York, et. al.*, pending in United States District Court, Southern District of New York, 08 CIV 1034, in a decision dated 5/16/12 certifying a class action lawsuit, it was found that between the years of 2005 and 2009 a reported 2.8 million people in New York City have been stopped and frisked. Of said number more than 87% were minority citizens. Summons and arrests were issued or made in approximately 10% of the reported stops. Meaning that based on their own records, defendants' suspicions are incorrect approximately 9 out of 10 stops.

b. The Honorable Shira A. Scheindlin, found in the Floyd decision that:

i. It is indisputable that NYPD has an enormous Stop and Frisk program;

ii. Evidence shows that the Stop and Frisk program is organized and hierarchical;

iii. Stop and Frisk program has been designed and revised at highest levels of defendants;

- iv. The implementation of the program is conducted according to uniform and centralized rules;
- v. Monitoring of the program is hierarchical;
- vi. The program is the result of institutional decisions and directives.

c. Justice Sheindlin further found that a preponderance of evidence shows that defendants policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The Court noted that street level stops have risen every year. That in 2004, defendants documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated 10/17/11, Commissioner Kelly directed that “Department managers can and must set performance goals - relating to “the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals.” It further states that “uniformed members who do not demonstrate activities... or who fail to engage in proactive activities... will be evaluated accordingly and their assignments reassessed.”

152. Other instances of an illegal and/or improper stop and frisk program custom or practice and/or excessive use of force and filing of false charges includes but not limited to:

a. On 4/12/11 in the vicinity of Walton Avenue and Mt. Hope Place, Bronx, NY, while doing nothing illegal or improper, Lonnie Thompson was approached by several uniformed police officers for no reason and without reasonable suspicion. After being stopped, Mr. Thompson was patted down and searched. He was arrested and charged with Criminal Possession of a Weapon in the Fourth Degree. This, even though the weapon was a bona fide work tool. Mr. Thompson was subjected to a strip search at the 46th Precinct. All charges were dismissed.

b. On 5/4/11 in the vicinity of 2345 Jerome Avenue, Bronx, NY, Alex Niewkerk, who is handicapped, was sitting in his legally parked vehicle and waiting for his friends to finish shopping at a nearby store. All of a sudden several undercover police officers from Bronx Narcotics approached his vehicle for no reason and without reasonable suspicion ordered him out of said vehicle. Mr. Niewkerk was subjected to a pat down and search. He was subsequently arrested for possession of a controlled substance in the seventh degree even though the “substance” recovered from his pants pocket was his own prescribed pain medication. Mr. Niewkerk was subjected to a strip search and forced to move his body in ways that are extremely painful given his medical status and condition. All charges were dismissed.

c. On 6/2/11 in the vicinity of East 237th Street and Barnes Avenue, Bronx, NY, Jesus Rosario, an infant, was approached by several police officers from the 41st Precinct. He was told to “get on the wall” and thereafter patted down and searched. Mr. Rosario was accused of Trespassing in the Second Degree. Mr. Rosario was doing nothing illegal or improper at the time the officers approached as he was simply exiting 3044 Kingsbridge Avenue after visiting his father who resides in said building. After being arrested, Mr. Rosario was subjected to a strip search at the 41st Precinct. The case was declined to be prosecuted by the District Attorney's Office.

d. On 7/31/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Nicholas Hernandez and Dilson Pena were sitting outside of their building on a public bench and doing nothing illegal or improper. All of a sudden, several police officers from the 41st Precinct approached them for no reason and told them to submit to a frisk. Mr. Hernandez and Mr. Pena were accused of possession of marihuana even though no marihuana was recovered. They were each subjected to a strip search at the 41st Precinct. All charges against them were declined to be prosecuted by the District Attorney's Office.

e. On 1/22/11 in the vicinity of 808 Park Avenue, Brooklyn, NY, Captain Michelle Culp, a now retired Captain for New York City Department of Corrections, was visiting her sick and elderly mother at the aforementioned address and decided to walk her mother's dog. In so doing, Captain Culp was approached by several uniform housing police officers and accused of Trespassing

in the Second Degree. She was patted down and searched. This, despite the fact that Captain Culp explained that she was visiting her mother and her identification and personal belongings were in her mother's apartment in the same building. All charges were dismissed.

f. On 5/20/11 in the vicinity of Park Avenue and East 138th Street, Bronx, NY, Patrick Nielson was exiting the number 4 subway train and going to his car which was parked nearby when he was followed, stopped, frisked, and assaulted by several undercover police officers from Bronx Narcotics for no reason. Thereafter, he was arrested and accused of possession of a controlled substance. Mr. Nielson was subjected to a strip search. The “controlled” substance was Mr. Nielson's prescription medication. All charges were dismissed.

g. On 6/22/10 in the vicinity of 139th Street and Lenox Avenue, New York, NY, Wilford Person was approached by several undercover police officers from Manhattan North Narcotics for no legitimate reason. Mr. Person was thereafter told to get against a fence and patted down and searched. He was accused of possession of marihuana. Mr. Person was simply playing basketball at the time the police approached him. After being arrested Mr. Person was subjected to a strip search. All charges were eventually dismissed.

h. On 5/2/12 in the vicinity of 1912 Third Avenue, New York, NY, Jose Baez, the manager of a local eyeglass store, left the store to buy his lunch. After leaving the store Mr. Baez, for no reason at all, was approached by several undercover police officers from Manhattan North Narcotics, and was detained, patted down, searched, and falsely accused of selling marihuana. Mr. Baez was subjected to a strip search. All charges against him were dismissed.

i. On 11/13/10 in the vicinity of 1113 Boston Road, Bronx, NY, Alpha Mahoi, was doing nothing illegal or improper when, for no reason, he was approached by several undercover police officers from Bronx Narcotics and accused of being involved in the sale of cocaine. He was cuffed, patted down, searched, arrested and strip searched at the precinct. All charges were dismissed.

j. On 3/10/12 in the vicinity of 1821 Davison Avenue, Bronx, NY, Keyewanie Blackledge, Dwayne Sammarco and Richard Campbell were leaving their friend's apartment when they were approached by several uniform police officers from the 46th Precinct for no reason and told to “get on the wall” and “get on the floor” and thereafter patted down and searched. They were all charged with Trespassing in the Second Degree. All charges were dismissed.

k. On 7/31/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Dylan Pena was outside recording on his cell phone several police officers from the 41st Precinct arresting a person from the neighborhood. Upon seeing Mr. Pena recording the incident several police officers grabbed him and pushed him to the ground and seized his cell phone without any reason to do so. All data on the phone was subsequently erased by the officers. Mr. Pena was also patted down and searched. He was charged with resisting arrest and was strip searched at the 41st Precinct. The charges were declined to be prosecuted by the District Attorney's Office.

l. On 5/17/11 in the vicinity of 1690 Clay Avenue, Bronx, NY, Gregory Williams was leaving a family friend's apartment after helping her move furniture so she could clean. Upon exiting the building Mr. Williams, for no reason at all, was approached by several uniformed police officers from the 44th Precinct and patted down and searched. He was accused of Trespassing in the Second Degree despite his family friend informing the police officers at the scene and at the 44th Precinct that he had permission to be in the building. Mr. Williams was strip searched. All charges against him were dismissed.

m. On 3/16/11 in the vicinity of 1740 Grand Avenue, Bronx, NY, Lindon Grant just left his apartment to walk approximately 1 block to buy breakfast before going to work. After he bought his breakfast and left the store he was approached by several undercover police officers from the 46th Precinct for no reason and patted down and searched. He was then accused of selling marihuana. Mr. Grant was arrested, strip searched and prosecuted for several months. All charges were dismissed.

n. On 8/2/09 in the vicinity of Southern Boulevard and East 175th Street, Bronx, NY Jose Suazo was approached by several uniformed officers from the 42nd Precinct for no reason. Mr. Suazo was patted down and searched. Despite the fact that he had nothing illegal on his person he was charged with possession of marihuana. While already in custody in a police van shots were fired in a nearby park. When Mr. Suazo got to the precinct he found out that even though he was already in custody in the police van when the shots were fired, he was charged with possession of a weapon in the second degree. Mr. Suazo was subjected to a strip search. All charges were eventually dismissed.

o. On 8/12/09 in the vicinity of 894 Rogers Place, Bronx, NY, Edmanuel Benitez was standing outside of the building and waiting for a friend to come outside to play basketball. All of a sudden he was approached for no reason by officers from the 41st Precinct and thereafter patted down, searched, arrested, strip searched and prosecuted for the sale of marihuana. All charges were dismissed.

p. On 2/19/12 Daniel Rodriguez was leaving a store in the vicinity of Jerome Avenue and West 192nd Street when he was summarily grabbed, pushed against a wall, patted down, frisked, searched and then handcuffed by several officers from Bronx Narcotics. Mr. Rodriguez was doing nothing illegal or improper at the time. He was subsequently strip searched and charged with possession of a controlled substance in the seventh degree. All charges were dismissed.

q. On 9/28/11 Shakeem Enang was in the vicinity of West 179th Street and University Avenue when he was approached by several plain clothes officers from Bronx Narcotics Division. Mr. Enang was doing nothing illegal at the time the officers approached or anytime prior to the officers approaching. He was grabbed, seized, frisked, searched and then arrested. Mr. Enang was charged with criminal sale of a controlled substance. He was strip searched at the 46th Precinct. All charges were dismissed.

r. On 4/29/11 Jose Gonzalez was in the vicinity of Prospect Avenue and East 175th Street, Bronx, New York, at approximately 11:30 p.m., when he was approached by several plain clothes police officers from Bronx Narcotics. At the time the officers approached Mr. Gonzalez, and at anytime before they approached, Mr. Gonzalez was not doing anything illegal. He was simply going to the store to buy soda and a pack of cigarettes. Mr. Gonzalez was grabbed, seized, frisked, searched and then arrested by said officers. Mr. Gonzalez was charged with criminal sale of a controlled substance in the third degree. He was strip searched while in custody. All charges were dismissed.

s. On 3/16/13, at approximately 9:30 p.m., Timothy Brooks, an infant, and his brother Jonathan Gordon, had just left their grandmother's apartment at 2000 Valentine Avenue, Bronx, NY to go to the store to buy milk. Mr. Brooks and Mr. Gordon did not even have the opportunity to exit the building when they were approached by several officers from the 46th Precinct for no reason at all, and subjected to a pat down and search. Even though Mr. Brooks and Mr. Gordon were doing nothing illegal at the time and had full permission and authority to be in the building, they were arrested and charged with Trespassing in the Second Degree. At the 46th Precinct they were subjected to a strip search. Eventually all charges against them were dismissed.

t. On 7/4/11, at approximately 11:20 p.m., Christina Vilella was in the vicinity of 894 Rogers Place and doing nothing illegal, improper or suspicious. Several police officers from the 41st Precinct approached Ms. Vilella and thereafter grabbed her, searched her, and summarily handcuffed her without any legal reason or justification. Ms. Vilella was charged with Resisting Arrest. All charges against her were dismissed on 6/29/12.

153. In addition to the above, and as will be demonstrated below, the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD also extends to other areas that implicitly or explicitly form a policy or a program that is carried out and implemented in an egregious, malicious, deliberate, indifferent and unconstitutional fashion.

154. The CITY and NYPD on a consistent and constant basis, with or without a valid search warrant, with or without lawful entry onto private real property or a premises such as an apartment, unlawfully detain, harass, seize, search, destroy and illegally remove personal property and thereafter arrest individuals within such a premises who are neither leaseholders nor owners of said premises and who are only present in a room on said real property where contraband is not in plain view.

155. The above must be considered, as the facts herein suggest, when an individual is in a room on a premises where contraband is not in plain view, it cannot be said, as a matter of law, that said individual is to be in actual or constructive possession of contraband nor in possession pursuant to a Penal Law statutory presumption. Nonetheless, defendants on a consistent and constant basis unlawfully stop, seize, search and arrest individuals, such as the Plaintiff herein, in such a scenario even though the stop, seizure and arrest of said individual, including Plaintiff herein, is lacking in reasonable cause, probable cause or legal justification.

156. The foregoing acts, omissions and systemic failures are customs and policies of the CITY and NYPD which caused the police officers herein to falsely arrest, maliciously prosecute, illegally seize and search the Plaintiff unlawfully, commit an assault and battery to Plaintiff's person under the belief that said police officers would not suffer any disciplinary actions for their improper and unconstitutional conduct.

157. The CITY and NYPD'S failure to train its police officers to distinguish between individuals who are lessee's and/or reside at a premises for a sufficient length of time as evidenced by utility bills in their name, letters or mail addressed to them at the premises, as opposed to individuals who are mere guests or visitors who do not have the right to exercise dominion and control over the premises as evidenced by their not having any furniture in the premises, their name on the lease, their name on a utility bill or mail addressed to them as well as having no personal belongings within the premises that demonstrate something more than a temporary or overnight guest, are all factors that the CITY and NYPD have consistently and constantly ignored in a deliberate and malicious fashion.

158. As the same fact patterns are present over the past several years with alarming frequency, it is apparent and obvious that a pattern by the CITY and NYPD has developed and is in place demonstrating continued violations of individuals similarly situated to the Plaintiff herein. The pattern demonstrates either a defacto policy or custom that exists to allow this behavior by failing to discipline its officers or that this is a custom of its police officers who have no and/or insufficient training and/or no proper supervision and/or disciplinary penalties assessed against them for continued acting in an unconstitutional manner.

159. The below examples demonstrate a small sample of the pattern practice and custom of deliberate indifference by the CITY and NYPD by arresting innocent individuals who are merely present in a location when contraband is not in plain view and have no legal ties to the premises being searched either with or without a search warrant, either legally or illegally.

a. On 10/22/10, Joanne Brown, Andrea Doby and Tameka Gunter were inside apartment 4E at 1684 Nelson Avenue, Bronx, NY. They were doing nothing illegal or improper and were simply visiting a friend. None of the aforementioned individuals were leaseholders or had any legal connections to the premises. All 3 individuals were only in the apartment for a short while when all of a sudden several police officers entered the apartment and arrested all of the occupants. Despite several requests the officers never presented a search warrant. All 3 of the above-mentioned individuals were charged with possession of a controlled substance in the seventh degree despite the fact that none of them ever were aware of or had any knowledge of any contraband in the apartment and contraband was not in plain view at anytime. All charges were eventually dismissed.

b. On 2/8/08, Tony Mizell was inside apartment 2 at 950 Saint John Avenue, Bronx, NY. Mr. Mizell was not a leaseholder of said premises and had no legal connection to the apartment. He was simply an overnight guest with his wife and small child. All of a sudden, in the early morning hours, several police officers rushed into the apartment and arrested all of the occupants for possession of a weapon. A search warrant was never presented. The weapon was located in a back bedroom inside a closet within a coat pocket. Mr. Mizell had no connection to the gun, the bedroom or the closet. He was arrested and prosecuted for

several months even though the owner of the gun pled guilty in Federal Court shortly after 2/8/08. Eventually all charges were dismissed against Mr. Mizell.

c. On 1/10/10 Gregory Jacobus was inside apartment 4 located at 2290 Davidson Avenue, Bronx, New York. Mr. Jacobus was visiting his chess teacher. He was simply an overnight guest in apartment 4 and was not a leaseholder and had no legal rights to the apartment. Early in the morning while Mr. Jacobus was in the shower, several police officers rushed into the apartment and arrested Mr. Jacobus and his chess teacher. A search warrant was never presented. Mr. Jacobus never saw any contraband in the apartment at anytime and had no knowledge of any contraband if there was indeed any. After spending several days in jail, a Grand Jury dismissed all charges against Mr. Jacobus.

d. On 6/12/07 Joanne Reyes was inside apartment 1F at 1530 Sheridan Ave, Bronx, NY. In the early morning hours Ms. Reyes heard a loud bang and several people rushed into her apartment. Ms. Reyes thought she was getting robbed until she realized the individuals were police officers. Even though Ms. Reyes was not a leaseholder to the apartment and no contraband was in plain view at anytime and Ms. Reyes never saw any contraband within the apartment at anytime, she was handcuffed, arrested and taken to a local precinct and then central booking. Her pleas for her medications were summarily ignored throughout the entire time she was detained. After being prosecuted for several months the case was eventually dismissed.

e. On 4/4/08 Shakenia Garlick was inside apartment 7B at 2487 Grand Avenue, Bronx, NY. In the early morning hours several police officers broke down the front door and entered her apartment. No search warrant was ever presented. Ms. Garlick had no knowledge of any contraband in the apartment and same was never in plain view. Despite aggressive questioning by the officers Ms. Garlick insisted that they were making a mistake and were, perhaps, in the wrong apartment. She was arrested for possession of a controlled substance. The substance was her pre-natal vitamins. The case was dismissed by the District Attorney's Office when the laboratory analysis indicated negative for a controlled substance.

f. On 8/5/09 Edward Benitez was inside apartment 5E visiting his friend at 894 Rogers Place. It was the early afternoon and Mr. Benitez was inside the apartment for only a few minutes. All of a sudden there was a knock at the door and several police officers rushed into the apartment. Despite the fact that Mr. Benitez was not a resident of the apartment, not a leaseholder and had no legal connection to the apartment he was arrested for possession of marijuana which was neither on his person or in plain view in any part of the apartment. After several court appearances all charges were dismissed against him

g. On 1/18/12 Jennifer Tarantino was inside apartment E1N at 3034 Grand Concourse, Bronx, NY. She was visiting her boyfriend who was renting out the spare bedroom to another individual. Around 10:00 p.m. Ms. Tarantino was awoken by a loud noise and several police officers were pointing their guns at her as she lie in bed. Even though Ms. Tarantino was not a leaseholder of the apartment and had no legal rights to the apartment she, as an overnight guest, was arrested and charged with possession of a controlled substance in the third degree. She was never presented with a search warrant despite numerous requests and never saw anything illegal in plain view. All charges against her were eventually dismissed.

h. On 11/18/11 Sabrina Souffront was in apartment 4A located at 1465 Washington Ave, Bronx, NY. Ms. Souffront was visiting a friend and was not a leaseholder of the apartment and had no legal rights to said apartment. No contraband was ever in plain view and she had no knowledge of any contraband within the apartment. In the early morning hours, Ms. Souffront heard a loud bang at the front door and several police officers rushed into the apartment and detained all of the occupants. Ms. Souffront later learned that in one of the bedrooms, within a closet, was a small amount of narcotics. Ms. Souffront was completely unaware of the existence of anything illegal in the apartment and in fact was never even in that particular bedroom during her visit. She was arrested and held in jail for over 24 hours. Eventually all charges against her were dismissed.

i. On 7/29/11 Ismael Velez and Michael Concepcion were inside the basement apartment at 512 East 162nd Street, Bronx, NY. The basement apartment was a music studio and Velez and Concepcion were recording. In the early morning hours, all of a sudden, several police officers rushed into the studio and assaulted Velez and Concepcion and arrested them for possession of marijuana. Velez and Concepcion were not leaseholders and had no legal ties to the basement apartment. In addition, Velez

and Concepcion never saw any illegal substances in plain view at anytime they were in the recording studio. All charges were eventually dismissed.

j. On 6/17/10 Samantha Morales was inside apartment 5B located at 1000 Simpson Street, Bronx, NY. In the early morning hours, all of a sudden several police officers rushed into the apartment and arrested Ms. Morales and all of the occupants. Ms. Morales was not a leaseholder of the apartment. She was charged with possession of marihuana even though marihuana was never found and certainly not in plain view at anytime. Despite requests a search warrant was never presented. The District Attorney's Office declined to prosecute Ms. Morales.

k. On 6/16/10 Frankie Morales was inside apartment 4K at 995 Simpson Street, Bronx, NY. In the early morning hours he heard a bang on the door and several police officers rushed into the apartment. Mr. Morales is not a leaseholder of the apartment and has no legal rights to same. He was arrested and charged with possession of marihuana despite the fact that nothing of an illegal nature was ever found in the apartment. No search warrant was ever presented despite numerous requests. The District Attorney's Office declined to prosecute the case.

l. On 6/16/10 Christopher Hernandez was inside apartment 4H at 995 Simpson Street, Bronx, NY. In the early morning hours he heard a bang on the door and several police officers rushed into the apartment. Mr. Hernandez is not a leaseholder of the apartment and has no legal rights to same. He was arrested and charged with possession of marihuana despite the fact that nothing of an illegal nature was ever found in the apartment. No search warrant was ever presented despite numerous requests. The District Attorney's Office declined to prosecute the case.

m. On 2/1/12 Mikey Figueroa, Sr., Mikey Figueroa, Jr. and Laurita Figueroa were inside apartment 6A at 360 Morris Avenue, Bronx, NY. In the early morning hours they heard a bang on the door and several police officers rushed into the apartment. The police broke Mr. Figueroa, Sr.'s nose (he is approximately 74 years old). All were arrested and charged with possession of marihuana despite the fact that nothing of an illegal nature was ever found in the apartment and in point of fact no contraband was ever in the apartment. No search warrant was ever presented despite numerous requests. The District Attorney's Office declined to prosecute the case.

160. As is evidenced from the above, Plaintiff **MIKEY LUGO'S** injuries including the violation of her constitutional rights, the deprivation of her freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY'S and NYPD'S policies and/or deliberate indifference to practices which involve the excessive use of force, false arrest, police cover-ups, witness intimidation, malicious prosecution, illegal stop, questions and frisks, strip searches, Fourth Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment offending police officers. Moreover, it is the direct result of police officers arresting individuals for possession of contraband within a premises when either no such contraband exists or is not in plain view and the nexus between the contraband and the individual being arrested is so lacking that reasonable cause to effectuate the arrest is not present especially in light of the fact when the individual is only a temporary or overnight guest in the premises and is not the leaseholder. The practice is widespread and pervasive throughout the entire City of New York.

161. The CITY and NYPD knew or should have known of the customs and police practices of its officers which included but was not limited to: the failing to preserve and/or destruction of exculpatory evidence, threatening to arrest witnesses to police misconduct and engaging in cover-ups, fraud, perjury, deceit and malfeasance, arresting individuals when not in possession of a valid search warrant as well as police officers arresting individuals for possession of contraband within a premises when either no such contraband exists or is not in plain view and the nexus between the contraband and the individual being arrested is so lacking that reasonable cause to effectuate the arrest is not present especially in light of the fact when the individual is only a temporary or overnight guest in the premises and is not the leaseholder.

162. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go unreported, undisciplined and their acts condoned by other officers, including

their supervisors. Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

163. The CITY and NYPD'S tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a systemic practice and policy wherein police officers seem fairly tolerant of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are not viewed as "good cops" but rather as outcasts and are ostracized and often transferred to other assignments thereby perpetuating the illegal conduct of the NYPD and thusly the CITY.

164. Some instances where officers were treated as outcasts for reporting misconduct and/or arrest/summons quota system are as follows:

a. The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin in Floyd.

b. Justice Sheindlin referenced the deposition of Police Officer Polanco of the 41st Precinct stating that commanding officers set specific quotas for arrests and summons and for stop and frisks and threatened to reduce overtime for officers who failed to perform well and re-assign those who fail to meet quotas to less desirable posts.

c. According to secretly tape recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector and Chief of Transportation can be heard encouraging and demanding increased stops, summons and detentions and arrests.

d. Police Officer Craig Kathleens of the 42nd Precinct filed a lawsuit against the NYPD claiming the existence of a quota system and a systematic retaliation and harassment to those who did not comply.

e. Retired Detective James Griffin filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption will face harassment and a hostile work environment and that this conduct was tolerated by supervisors within the NYPD.

f. Police Officer Anthony Minoia, an officer with an Ivy League degree, assigned to the 42nd Precinct, was reassigned to a "punishment post" due to the fact that he failed to write a sufficient amount of summons and stated "I'm not going to pull out my summons book and write a summons because my boss is telling me he's going to make it difficult for me if I don't."

165. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and searching innocent citizens or using unnecessary or excessive force or falsely arresting citizens to meet an arrest quota.

166. That the above customs, policies and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff **MIKEY LUGO**, the excessive use of force on Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The CITY and NYPD'S policies, customs and/or practices deprived the Plaintiff of his rights and liberties as set forth in the Constitutions of the United States and the State of New York and under [42 U.S.C §§ 1983, 1986 and 1988](#).

167. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States, violated Plaintiff's right to be secure in person, and that the defendants used excessive, unnecessary and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.

168. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, excessive or arbitrary use of force, illegal use of police

equipment, destruction of evidence, intimidation of witnesses, illegal arrests, failing to gather evidence when allegations of police misconduct are involved, condoning a code of silence within the NYPD regarding misconduct, failing to take police reports of illegal conduct, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiff's false arrest, malicious and false prosecution, and injuries.

169. That the Plaintiff did not commit any illegal act, either before or at the time she was falsely arrested and imprisoned, assaulted, battered and deprived of his constitutional rights as set forth in the Constitution of the United States and [42 U.S.C § 1983](#).

170. That by reason of the foregoing, Plaintiff MIKEY LUGO has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FOURTEENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF MIKEY LUGO

171. Plaintiff **MIKEY LUGO** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-170 with the same force and effect as if fully set forth at length herein.

172. At all times mentioned herein and above, defendants CITY and NYPD employed SAMMARCO, DOE and ROE as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

173. Plaintiff **MIKEY LUGO** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to [42 United States Code, Section 1983](#) and [42 United States Code, Section 1988](#).

174. That on or about 7/31/12, defendants CITY, NYPD, SAMMARCO, DOE and ROE without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **MIKEY LUGO**, did search, seize, assault and commit a battery and grab the Plaintiff MIKEY LUGO without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff MIKEY LUGO during the arrest process in an unlawful and excessive manner. Plaintiff MIKEY LUGO was falsely arrested, unlawfully imprisoned and strip searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

175. The above actions of defendants CITY, NYPD, SAMMARCO, DOE and ROE and ROE resulted in Plaintiff **MIKEY LUGO** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law.

176. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

177. Defendants CITY, NYPD, SAMMARCO, DOE and ROE subjected Plaintiff **MIKEY LUGO** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **MIKEY LUGO'S** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

178. The direct and proximate result of the defendants CITY, NYPD, SAMMARCO, DOE and ROE acts are that Plaintiff **MIKEY LUGO** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

179. That by reason of the foregoing, Plaintiff MIKEY LUGO has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff **KATHLEEN ALMONTE** demands judgment against the defendants on the First Cause of Action through the Seventh Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, Plaintiff **MIKEY LUGO** demands judgment against the defendants on the Eighth Cause of Action through the Fourteenth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: New York, New York September 18, 2013

Yours, etc.,

NEIL WOLLERSTEIN, ESQ.

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File No.: NW-513

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